

STATE OF NEW YORK

1037--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 8, 2025

Introduced by M. of A. KIM, GIBBS, RAGA, SIMON -- Multi-Sponsored by --
M. of A. COOK, WOERNER -- read once and referred to the Committee on
Governmental Operations -- committee discharged, bill amended, ordered
reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to prohibiting an employer,
licensing agency or employment agency from requesting or requiring
that a prospective employee disclose their date of graduation from an
educational institution on an initial employment application or during
an interview, except in the case of a bona fide occupational qualification
or need

The People of the State of New York, represented in Senate and Assembly,
do enact as follows:

1 Section 1. Subdivision 3-a of section 296 of the executive law is
2 amended by adding a new paragraph (a-1) to read as follows:

3 (a-1) For any employer, licensing agency or employment agency to
4 request or require that a prospective employee disclose their date of
5 graduation from an educational institution on an initial employment
6 application or during an interview, except in the case of a bona fide
7 occupational qualification or need.

8 § 2. This act shall take effect on the first of January next succeeding
9 the date upon which it shall have become a law. Effective immediately,
10 the addition, amendment and/or repeal of any rule or regulation
11 necessary for the implementation of this act on its effective date are
12 authorized to be made and completed on or before such date.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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